

by Cal. Probate Code § 3604 for his benefit. The deduction of \$ 27,759.83 represents a negotiated deduction from the settlement used to satisfy liens for medical expenses and to pay for attorney's fees incurred. Petitioner's counsel prepared a proposed order to deposit funds into special trust account.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of this Claim and the Proposed Order to Deposit Funds into a Special Needs Trust lodged on August 5, 2025. No appearance is required on December 3, 2025.

3. 9:00 AM CASE NUMBER: C23-02347
CASE NAME: KRISTIN CASEY VS. KRIS HANSEN
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: CASEY, KRISTIN
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Kristin Casey's motion for leave to file a FAC pursuant to CRC 3.1324. The Motion relates to Plaintiff adding a cause of action pursuant to California Labor Code § 1102.5 for whistleblower retaliation allegedly committed by Defendant D.R. HORTON, INC.

For the reasons explained below, **Plaintiff's motion to for leave to file a FAC is granted.**

Factual Background

This is an employment related case in which Plaintiff KRISTIN CASEY alleges sexual harassment against her former employer, DEFENDANT D.R. HORTON, INC. ("DRH"). Plaintiff was a real estate agent selling homes for DRH where Plaintiff alleges, she repeatedly endured vulgar and threatening incidents of sexual harassment. (Complaint ¶ 1.) Plaintiff worked for Defendant D.R. Horton from June of 2018 to September 2023. (Casey Decl. ¶ 2.)

Procedural Background

Plaintiff filed her complaint on September 18, 2023. (Teti Decl., ¶ 2.) However, litigation in the case was halted on April 12, 2024, following the Court's grant of Defendants' motion to compel arbitration. (Id., ¶ 8.) Upon petitioning the Court of Appeal, the decision to grant Plaintiff's petition for writ of mandate reversing the arbitration order was not delivered until February 3, 2025, and the Court of Appeal's remittitur, returning jurisdiction to this Court, was not docketed until May 20, 2025. (Id., ¶¶ 10–11.) No demurrers have been filed, and this Motion is necessary for Plaintiff to amend her Complaint. (See id., ¶ 14; Code Civ. Proc. § 473.)

Plaintiff has continually developed the facts in this case through the discovery process, which has brought to light the connections giving rise to the retaliation claim under Labor Code § 1102.5. (Teti Decl., ¶ 14.) Plaintiff alleges through her attorney's declaration, that newly discovered information

justifying the proposed amendment only came to light during the April 29, 2025, deposition of Kris Hansen, as well as via Defendant's document production. Plaintiff posits that Mr. Hansen's testimony, in conjunction with the recent document production, tends to prove that Hansen's placement with Plaintiff was itself a retaliatory act for Plaintiff's resistance to D.R. HORTON's practice of securing \$10,000 deposits from prospective home buyers towards the home purchase, despite knowing many customers would later be denied mortgage approval, resulting in the forfeiture of their deposits to D.R. HORTON. (Id., ¶ 15.)

Legal Standard for Granting Leave to Amend for a Complaint

Under California Code of Civil Procedure 473(a), courts liberally allow amendments to ensure that cases are decided on their merits. It is well-established California law that leave to amend is to be granted liberally, to accomplish substantial justice for both parties. (CCP § 473(a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-89.) Indeed, "it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case." (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Under CCP 473(a) and relevant case law, courts are instructed to allow amendments liberally unless prejudice can be clearly demonstrated. (*Nestle v. City of Santa Monica* (1972) Cal.3d 920, 939.)

It is a well-known policy of the law to permit amendments of pleadings liberally in order that litigation may be tried on its merits. (*Cardenas v. Ellston* (1968) 259 Cal App. 2d 232.) Courts are liberal in allowing amendments of complaints in order that, if possible, no litigant will be deprived of his day in court because of mere technicalities of pleading. (*Barr v. Carroll* (1954) 128 Cal. App. 2d 23.)

Analysis

Plaintiff's Failure to Meet and Confer is Not Fatal

Defendant argues that Plaintiff's failure to meet and confer is a sufficient basis to deny Plaintiff's motion for leave to file a FAC. (Oppo at p. 4: 13-14.) However, when examining the actual language of the local rules, "[t]he Court urges counsel to meet and confer on disputed issues before motions are filed." (LR 3.4(d).) Although the rules make it clear that the Court strongly prefers parties to meet and confer before the filing of motions, the word "urges" does not have the same mandatory meaning as "shall" or "must."

Plaintiff Identified the 2025 Deposition of Kris Hansen as the New Evidence for Leave to Amend

Plaintiff posits that newly discovered information justifying the proposed amendment only came to light during the April 29, 2025, deposition of Kris Hansen, as well as via Defendant's document production. Hansen's testimony, in conjunction with the recent document production, made clear that Hansen's placement with Plaintiff was itself a retaliatory act for Plaintiff's resistance to D.R. HORTON's practice of securing \$10,000 deposits from prospective home buyers towards the home purchase, despite knowing many customers would later be denied mortgage approval, resulting in the forfeiture of their deposits to D.R. HORTON. ((Teti Decl., ¶ 15.)

Defendants generally contend that Plaintiff's alleged new information was used in Plaintiff's March 2023 pre-litigation demand. (Oppo at p.5 :5-12.

Plaintiff bellies Defendants' contention. First, the March 2023 pre-litigation demand letter was prepared by Plaintiff's former counsel who did not have the factual benefit of newly produced documents, the deposition of the Defendant Kris Hansen, and the re-interview of the Plaintiff when assessing the matter. (Reply at p.5: 23-26.) Second, Plaintiff argues that nowhere does the March 2023 demand letter state that Ms. Casey opposed the \$10,000 customer deposit payments, that she disclosed information about them, or that she was retaliated against for making such disclosures. Nor does the letter contain any statement connecting Ms. Casey's assignment to work with Defendant Hansen—or any other adverse action—to retaliation for opposing unlawful business practices, which is the gist of the proposed amendment. (Reply at p.6: 1-4.)

Plaintiff Met Their Burden to Amend Their Pleading

Plaintiff has fulfilled all its procedural requirements to amend her Complaint. Plaintiff's motion included a copy of a serially numbered proposed amended complaint and included a list of proposed allegations to be added and deleted. (CRC Rule 3.1324(a); See Teti Decl., Exhs. 1-2; Motion pp. 6-9.) Plaintiff's motion was supported by two of counsel's declarations which specified the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (CRC Rule 3.1324(b); See Macek Decl., ¶¶ 2-9; Teti Decl., ¶¶ 15-16.)

Plaintiff's FAC

Defendants oppose this motion on the grounds that the proposed FAC has claims that are legally defective. Arguments regarding the merits of the claims alleged in the proposed FAC are more properly addressed in a challenge to the FAC after it is filed, whether by demurrer, motion for judgment on the pleadings, or motion for summary judgment. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 ["[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

The case has been pending for approximately two years, including an 11-month appeals period. There is no trial date set, there have been no challenges to the pleadings, and discovery is ongoing. There is no prejudice to Defendant by allowing the amendment, as they will have ample opportunity to contest its merits "by appropriate proceedings." (*Kittredge Sports Co.*, supra, 213 Cal.App.3d at 1048.)

Conclusion

As analyzed above, **Plaintiff's motion to for leave to file a FAC is granted.**

4. 9:00 AM CASE NUMBER: C24-01096

CASE NAME: FRANCISCO CORDOVA ALFARO VS. MENLO WESTRIDGE AFFORDABLE PARTNERS, L.P.

***HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT**

FILED BY: CORDOVA ALFARO, FRANCISCO

TENTATIVE RULING:

Plaintiff Francisco Cordova Alfaro's Motion for Leave to File First Amended Complaint, filed on August 14, 2025, is unopposed and is **granted**. Plaintiff's First Amended Complaint, attached as Exhibit A to